# Preface to This Edition: Lynching by Due Process

After spending eleven years in prison in New Delhi, most of them in solitary confinement, and on death row, on a clear February morning, Mohammad Afzal Guru was hanged. It was an execution performed in stealth and, as a former Solicitor General of India (and Senior Advocate in the Supreme Court) says later in this book, an act whose legality was gravely questionable.

How could there be legal doubts about an elected government hanging a man who had been given three life sentences and a double death sentence by the highest court in the land? Because only ten months before, in April 2012, the Supreme Court had concluded a series of hearings over the question of executing prisoners who had already served inordinately long prison sentences. One of the cases in that cluster was the case of Afzal Guru. The Bench had reserved its judgement; but Afzal Guru was executed before the Court delivered its verdict.

The government turned down his family's request for his body. He was buried without ceremony next to Maqbool Bhat, the founder of the Jammu Kashmir Liberation Front and the pre-eminent icon of Kashmir's movement for Azadi, freedom.

And so, in the compound of Tihar Jail, a second Kashmiri body awaits a funeral. While in Kashmir's Mazar-e-Shohadda, Martyrs' Graveyard, another empty grave awaits a body. Those who know Kashmir know how those imagined, subterranean, human-shaped hollows have, in the past, unleashed militant insurrections.

In India, once the initial bout of noisy celebrations trumpeting the triumph of the 'Rule of Law' had subsided, once the goons on the streets had run out of sweets to distribute (how long can you keep burning posters of a dead man without snack breaks?), a few people were permitted to express their unease with capital punishment, and to air their doubts about whether or not Afzal Guru had a fair trial. That was nice. And well timed too. Once again we came across as a Democracy with a Conscience.